STANDARD FORM OF SUBCONTRACT

Between Contractor and Subcontractor — Lump Sum

Subcontract No. MB-25-0412-S01

This Subcontract is entered into as of November 18, 2025 (the "Effective Date") by and between Meridian Builders, Inc., a California corporation, License No. 1083421, 2200 Broadway, Suite 400, Oakland, California 94612 ("Contractor"), and Ironline Steel Fabricators, Inc., a California corporation, License No. 994817, 950 Marina Way South, Richmond, California 94804 ("Subcontractor").

The Project is the Bayview Clinic Tenant Improvement at 1400 Embarcadero West, Oakland, California 94607. The Owner is Bayview Health, a California nonprofit public benefit corporation. The Architect is Harbor Line Architects LLP. Contractor and Owner entered into the Prime Contract for the Project on September 22, 2025.

ARTICLE 1 — THE AGREEMENT

1.1 Subcontractor agrees to perform the Subcontract Work described in Article 2 for the Subcontract Sum stated in Article 5, and Contractor agrees to pay the Subcontract Sum, in each case on the terms of this Subcontract and the documents it incorporates.

1.2 The Subcontract Documents are this Subcontract, its Exhibits A through D, the Prime Contract (including the drawings, specifications, addenda, general and supplementary conditions, and all other documents enumerated in it), and modifications issued after the Effective Date. Subcontractor acknowledges that it has been given access to the Prime Contract and has reviewed the portions relevant to the Subcontract Work.

1.3 Subcontractor shall be bound to Contractor by the terms of the Prime Contract and shall assume toward Contractor all obligations that Contractor by the Prime Contract assumes toward Owner, to the extent those obligations relate to the Subcontract Work. Contractor shall have the benefit of all rights, remedies and redress against Subcontractor that Owner, under the Prime Contract, has against Contractor.

1.4 Nothing in this Subcontract creates a contractual relationship between Subcontractor and Owner, the Architect, or any other subcontractor.

ARTICLE 2 — SUBCONTRACT WORK

2.1 Subcontractor shall furnish all labor, materials, equipment, engineering, shop drawings, fabrication, delivery, erection, field welding, bolting, touch-up and services required to complete the structural steel, miscellaneous metals, metal stairs and railings, and related work described in Exhibit A and in Specification Sections 05 12 00, 05 31 00, 05 50 00 and 05 51 00 (the "Subcontract Work"), complete and in place, in accordance with the Subcontract Documents.

2.2 Subcontractor shall furnish shop drawings and erection drawings prepared under the supervision of a civil or structural engineer licensed in California, and shall not fabricate any member until the applicable shop drawings have been reviewed by the Architect and the engineer of record and returned without exception.

2.3 Subcontractor shall furnish a certified crane operator, rigging plan and critical lift plan for all hoisting operations, and shall coordinate crane placement and street closure permits with Contractor at least ten (10) working days in advance.

2.4 Subcontractor represents that it has examined the site, the drawings and specifications, and the conditions affecting the Subcontract Work, and that the Subcontract Sum is sufficient to perform the Subcontract Work under those conditions.

ARTICLE 3 — TIME

3.1 Subcontractor shall begin the Subcontract Work within five (5) days after Contractor's written notice to proceed and shall complete it within the durations shown in Contractor's project schedule, Exhibit D, as that schedule is updated from time to time. Subcontractor shall furnish, within fourteen (14) days after the Effective Date, a fabrication and delivery schedule consistent with Exhibit D.

3.2 Time is of the essence. If Subcontractor falls behind the project schedule for reasons within its control, Subcontractor shall, at its own expense and upon Contractor's request, increase its forces, work overtime or additional shifts, or expedite delivery of materials, as necessary to recover the lost time.

3.3 Subcontractor shall be entitled to an extension of time for delays beyond its control, provided that it gives Contractor written notice within five (5) days after the start of the delay. Subcontractor shall be entitled to additional compensation for such delays only to the extent Contractor recovers that compensation from Owner on Subcontractor's behalf.

ARTICLE 4 — CHANGES

4.1 Contractor may direct changes in the Subcontract Work by written Change Order. Subcontractor shall submit, within ten (10) days after a request, a detailed proposal for any adjustment to the Subcontract Sum or time. Subcontractor's combined overhead and profit on changed work shall not exceed fifteen percent (15%) of direct cost for work self-performed and ten percent (10%) of the amount due to sub-subcontractors.

4.2 Subcontractor shall proceed with changed work on Contractor's written direction even if the adjustment has not been agreed, and the adjustment shall then be determined as provided in the Prime Contract. No claim for changed or extra work will be considered unless Subcontractor gave written notice to Contractor before performing the work.

ARTICLE 5 — SUBCONTRACT SUM

5.1 Contractor shall pay Subcontractor, in current funds, for the performance of the Subcontract Work, the Subcontract Sum of Four Hundred Thousand Dollars ($400,000.00), subject to additions and deductions as provided in the Subcontract Documents. The Subcontract Sum includes all taxes, permits, fees and bond premiums required of Subcontractor.

5.2 Schedule of Values. Within ten (10) days after the Effective Date, Subcontractor shall submit a schedule of values, in the form of Exhibit B, allocating the Subcontract Sum among the component parts of the Subcontract Work in sufficient detail for Contractor to evaluate progress. The schedule of values, once approved by Contractor, shall be the basis for Subcontractor's applications for payment.

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ARTICLE 6 — PAYMENTS

6.1 Applications for Payment. Subcontractor shall submit to Contractor, no later than the twenty-fifth (25th) day of each month, an application for payment for Subcontract Work performed and materials suitably stored through the end of that month, in the form required by the Prime Contract, broken down according to the approved schedule of values. Each application shall be accompanied by the waivers and releases described in Section 6.4, by certified payroll if required, and by such other supporting data as Contractor or Owner may reasonably require.

6.2 Progress Payments. Contractor shall pay Subcontractor each progress payment within seven (7) days after Contractor's receipt of the corresponding progress payment from Owner, consistent with California Business and Professions Code Section 7108.5. Contractor's receipt of payment from Owner fixes the time for payment to Subcontractor and does not condition Contractor's obligation to pay; the parties intend this Section 6.2 as a pay-when-paid provision and not as a pay-if-paid provision. Each progress payment shall equal the amount approved by Owner and Contractor for the Subcontract Work covered by the application, less retention under Section 6.3 and less any amounts properly withheld under Section 6.7.

6.3 Retention. Contractor shall withhold ten percent (10%) of each progress payment as retention. Upon Substantial Completion of the Subcontract Work, as certified by the Architect, Contractor shall release to Subcontractor one-half of the accumulated retention then held, within ten (10) days after Contractor's receipt of the corresponding retention from Owner. The balance of retention shall be released upon Final Completion of the Subcontract Work, acceptance by Owner, and delivery of the closeout documents required by Article 7, within ten (10) days after Contractor's receipt of final retention from Owner.

6.4 Waivers and Releases. With each application for payment, Subcontractor shall furnish a conditional waiver and release upon progress payment, in the form prescribed by California Civil Code Section 8132, for the amount of the current application, together with unconditional waivers and releases upon progress payment, in the form prescribed by California Civil Code Section 8134, from Subcontractor and from each of its sub-subcontractors and suppliers of every tier, covering all prior payments. With its final application, Subcontractor shall furnish a conditional waiver and release upon final payment in the form prescribed by California Civil Code Section 8136, and, upon receipt of final payment, an unconditional waiver and release upon final payment in the form prescribed by California Civil Code Section 8138. Receipt of the required waivers and releases, in form satisfactory to Contractor, is a condition of each payment.

6.5 Stored Materials. Contractor shall include in progress payments the value of fabricated steel and other materials delivered and suitably stored at the Project site, and, with Contractor's prior written approval, of fabricated steel stored at Subcontractor's fabrication shop or at a bonded warehouse off the site, provided that Subcontractor furnishes a bill of sale transferring title to Owner upon payment, evidence of insurance covering the stored materials for their full value, and reasonable access for inspection. Subcontractor remains responsible for stored materials until they are incorporated into the Subcontract Work.

6.6 Joint Checks. Contractor may, at its sole option and without liability to Subcontractor, make any payment under this Subcontract by check payable jointly to Subcontractor and any sub-subcontractor, supplier or laborer who has furnished labor or materials for the Subcontract Work and who has served a preliminary notice or asserted a claim. A joint check shall be credited against the amount due to Subcontractor as if paid directly to Subcontractor.

6.7 Withholding. Contractor may withhold from any payment an amount reasonably necessary to protect Contractor and Owner from loss on account of defective work not remedied, third-party claims or stop payment notices arising from the Subcontract Work, failure of Subcontractor to make payments properly to its sub-subcontractors or suppliers, damage to the work of others, or reasonable evidence that the Subcontract Work will not be completed for the unpaid balance of the Subcontract Sum. When the grounds for withholding are removed, payment shall be made for the amount withheld.

6.8 Backcharges and Setoff. If Subcontractor fails to perform any obligation under this Subcontract after three (3) days' written notice, Contractor may perform the obligation and deduct the reasonable cost, plus ten percent (10%) for overhead, from amounts due Subcontractor. Contractor may also set off against any amount due under this Subcontract any amount owed by Subcontractor to Contractor under any other contract between them.

6.9 Payment to Lower Tiers. Subcontractor shall pay its sub-subcontractors and suppliers, within seven (7) days after receiving each payment from Contractor, the amounts to which they are entitled from that payment, and shall furnish Contractor, upon request, evidence of such payment.

6.10 No Waiver by Payment. No payment, including final payment, shall constitute acceptance of defective or nonconforming Subcontract Work or a waiver of any claim by Contractor.

ARTICLE 7 — FINAL PAYMENT AND CLOSEOUT

7.1 Final payment of the balance of the Subcontract Sum, including retention, shall be made as provided in Section 6.3 after: (a) Final Completion of the Subcontract Work and its acceptance by Owner and the Architect; (b) delivery to Contractor of all warranties, as-built drawings, test reports, mill certifications and other closeout submittals required by the Subcontract Documents; (c) delivery of the waivers and releases required by Section 6.4 from Subcontractor and from every lower tier; and (d) if Subcontractor furnished bonds, delivery of the surety's consent to final payment.

7.2 Subcontractor warrants the Subcontract Work against defects in materials and workmanship for a period of one (1) year after Substantial Completion of the Project, or for such longer period as the Prime Contract requires, and shall promptly correct any defective work at its own expense.

7.3 Acceptance of final payment by Subcontractor shall constitute a release of all claims by Subcontractor against Contractor and Owner except those identified in writing as unsettled at the time of the final application for payment.

ARTICLE 8 — INSURANCE AND BONDS

8.1 Subcontractor shall maintain, throughout the Subcontract Work and for the periods stated in Exhibit C, commercial general liability, automobile liability, workers' compensation and employer's liability, and umbrella liability insurance in the amounts stated in Exhibit C, naming Contractor and Owner as additional insureds on a primary and noncontributory basis, and shall deliver certificates and endorsements before beginning work.

8.2 If required by Contractor in Exhibit C, Subcontractor shall furnish performance and payment bonds, each in the full amount of the Subcontract Sum, issued by a surety admitted in California and acceptable to Contractor. The premium for such bonds is included in the Subcontract Sum.

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ARTICLE 9 — INDEMNITY

9.1 To the fullest extent permitted by law, Subcontractor shall defend, indemnify and hold harmless Contractor, Owner, the Architect and their respective officers, directors, agents and employees from and against all claims, damages, losses and expenses, including attorney's fees, arising out of or resulting from the performance of the Subcontract Work, but only to the extent caused by the negligent acts or omissions of Subcontractor, its sub-subcontractors, or anyone for whose acts they may be liable, and not to the extent caused by the active negligence or willful misconduct of the indemnified party. This Section 9.1 is intended to comply with California Civil Code Sections 2782 and 2782.05.

ARTICLE 10 — DEFAULT AND TERMINATION

10.1 If Subcontractor fails to prosecute the Subcontract Work diligently, fails to pay its sub-subcontractors or suppliers, becomes insolvent, or otherwise breaches this Subcontract, and does not cure the failure within three (3) days after written notice, Contractor may, without prejudice to any other remedy, supplement Subcontractor's forces, take possession of Subcontractor's materials and equipment at the site, or terminate this Subcontract and complete the Subcontract Work by whatever method Contractor deems expedient, charging the cost to Subcontractor.

10.2 Contractor may terminate this Subcontract for convenience on seven (7) days' written notice, in which case Subcontractor shall be paid for Subcontract Work properly performed through the date of termination, plus reasonable demobilization costs, but no anticipated profit on work not performed.

ARTICLE 11 — DISPUTES AND GOVERNING LAW

11.1 This Subcontract shall be governed by the laws of the State of California. Any action arising out of this Subcontract shall be brought in the Superior Court of California for the County of Alameda, and the parties consent to the jurisdiction of that court.

11.2 Claims between Contractor and Subcontractor shall first be submitted to the parties' senior executives for resolution and, failing resolution within twenty (20) days, to mediation administered by a mediator mutually selected by the parties, as a condition precedent to litigation. Subcontractor shall continue to perform the Subcontract Work during any dispute.

11.3 If a dispute involves Owner or the Architect, Subcontractor agrees to be bound by the dispute resolution provisions of the Prime Contract and to join in any proceeding between Contractor and Owner to the extent the dispute concerns the Subcontract Work.

ARTICLE 12 — GENERAL PROVISIONS

12.1 Subcontractor shall comply with all federal, state and local laws, ordinances and regulations applicable to the Subcontract Work, including prevailing wage requirements where applicable.

12.2 Subcontractor shall not assign this Subcontract or any amounts due under it without Contractor's written consent. This Subcontract is binding upon the parties and their permitted successors and assigns.

12.3 This Subcontract represents the entire agreement between the parties and supersedes all prior negotiations and agreements. It may be amended only by a writing signed by both parties. If any provision is held invalid, the remainder shall continue in effect.

12.4 Notices shall be in writing and delivered to the addresses above by hand, overnight courier, or email with confirmation.

The parties have executed this Subcontract as of the Effective Date.

MERIDIAN BUILDERS, INC. — By: Daniel Okafor, Vice President, Operations — Date: November 18, 2025

IRONLINE STEEL FABRICATORS, INC. — By: Helen Varga, Chief Executive Officer — Date: November 20, 2025

EXHIBIT B — SCHEDULE OF VALUES

Line	Description	Scheduled Value
1	Mobilization & submittals	$20,000.00
2	Shop drawings & engineering	$30,000.00
3	Structural steel — furnish	$150,000.00
4	Structural steel — erect	$120,000.00
5	Miscellaneous metals & stairs	$60,000.00
6	Closeout & punch list	$20,000.00
	Subcontract Sum	**$400,000.00**

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